

9:00 AM

Line 3

25-CIV-04482 CARLOS TAPIA, ET AL VS. CHRISTINA CORPUS, INDIVIDUALLY AND
IIN HER OFFICIAL CAPACITY, ET AL

CARLOS TAPIA
CHRISTINA CORPUS, INDIVIDUALLY AND IN HER
OFFICIAL CAPACITY

GRANT A WINTER
WAI SHUN WILSON LEUNG

Defendant County of San Mateo and Defendant Matthew Fox's Demurrer to Plaintiffs' Complaint

TENTATIVE RULING:

For the reasons stated below, Defendants County of San Mateo's and Matthew Fox's demurrer, filed Jan. 28, 2026, which is directed to Plaintiffs Tapia et. al.'s original Complaint, filed June 13, 2025, is HEREBY TAKEN OFF CALENDAR AS MOOT. The Court finds that on Aug. 3, 2026, Plaintiffs timely attempted to file a First Amended Complaint ("FAC") against Defendants County of San Mateo and Matthew Fox, which should have been accepted for filing, and which would have rendered this demurrer moot.

Background.

On June 13, 2025, Plaintiffs filed their original Complaint. On Jan. 28, 2026, Defendants County of San Mateo and Matthew Fox filed a joint demurrer to the Complaint. The hearing date for the demurrer was initially set for Aug. 14, 2026, and rescheduled for Aug. 21, 2026. On May 22, 2026, defendant Corpus filed an Answer to the Complaint. On Aug. 3, 2026, Plaintiffs attempted to file their proposed FAC, but the Clerk's Office rejected the attempted filing of the FAC, on grounds that defendant Corpus had already filed an Answer. (See Aug. 10, 2026 Decl. of Jason Hauer, ¶¶ 3-5; Exhibits 2-3.) The deadline for Plaintiffs to file their Opposition to the demurrer was Aug. 10, 2026.

Application/ruling.

With respect to Defendants County of San Mateo and Matthew Fox, Plaintiffs' Aug. 3, 2026 attempted filing of their FAC was timely under Code Civ. Proc. § 472(a). The fact that defendant Corpus had already filed an Answer did not terminate Plaintiff's right to amend with respect to the claims asserted against the County of San Mateo and Fox. (*Barton v. Khan* (2007) 157 Cal.App.4th 1216, 1220-21.) Therefore, the Clerk's Office should have filed the FAC, which would have rendered this demurrer moot. Because Plaintiffs timely exercised their right to amend as against the County of San Mateo and Fox, and because the Clerk's rejection of the FAC was based upon the erroneous conclusion that defendant Corpus' Answer terminated that right, the Court declines to determine the merits of the County of San Mateo's and Fox's demurrer to the original Complaint.

In their Reply brief, Plaintiffs cite to *Alden v. Hindin* (2003) 110 Cal.App.4th 1502, and argue that Plaintiffs had no right to amend their claims against Defendants County of San Mateo and Matthew Fox, once defendant Corpus had answered. Plaintiffs ignore that in *Barton*, the same court that decided *Alden* expressly disagreed with any suggestion in *Alden* that one defendant's filing of an answer extinguishes a plaintiff's right to amend with respect to other defendants, before the hearing on a demurrer. (*Barton v. Khan, supra*, 157 Cal.App.4th at 1221.)

Within five days of this Order, Plaintiffs shall file their proposed FAC with the Court, as a stand-alone document, and serve it on all parties. Defendants County of San Mateo and Matthew Fox shall then respond to the FAC, which will be Plaintiffs' operative pleading.

The proposed amendments concerning defendant Corpus are not decided by this Order.

The Court recognizes that Plaintiffs' proposed FAC also purports to assert amended claims against defendant Corpus, without leave of court. This Order is limited to Plaintiffs' right to amend *as against the County of San Mateo and Matthew Fox*, pursuant to Code Civ. Proc. § 472(a).

Any party who contests a tentative ruling must email Dept20@sanmateocourt.org with a copy to all other parties by 4:00 p.m. stating, without argument, the portion(s) of the tentative ruling that the party contests.

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, Counsel for the prevailing party shall prepare for the Court's signature a written order consistent with the Court's ruling pursuant to CRC Rule 3.1312 and provide written notice of the ruling to all parties who have appeared in the action, as required by law and by the CRC. Please note that Local Rule 3.403(b)(iv) states in part "prevailing party on a tentative ruling is required to prepare a proposed order **REPEATING VERBATIM** the tentative ruling" (emphasis added). The order should be filed or e-filed only, do not email or mail a hard copy to the Court.

9:00 AM

Line 4

25-CIV-04482 CARLOS TAPIA, ET AL VS. CHRISTINA CORPUS, INDIVIDUALLY AND
IIN HER OFFICIAL CAPACITY, ET AL

CARLOS TAPIA
CHRISTINA CORPUS, INDIVIDUALLY AND IN HER
OFFICIAL CAPACITY

GRANT A WINTER
WAI SHUN WILSON LEUNG

Defendant/Cross-Complainant Daniel Perea's Demurrer to Complaint for: (1) 4th Amendment Unreasonable Arrest; (2) Free-Speech Violations; (3) Free Association Violations; (4) Interference with Union Activities; (5) False Imprisonment

TENTATIVE RULING:

For the reasons stated below, Defendant Daniel Perea's demurrer, filed Jan. 28, 2026, which is directed to Plaintiffs Tapia et. al.'s original Complaint, filed June 13, 2025, is HEREBY TAKEN OFF CALENDAR AS MOOT. The Court finds that on Aug. 3, 2026, Plaintiffs timely attempted to file a First Amended Complaint ("FAC") against Defendant Daniel Perea, which should have been accepted for filing, and which would have rendered this demurrer moot.

Background.

On June 13, 2025, Plaintiffs filed their original Complaint. On Jan. 28, 2026, Defendant Daniel Perea filed a demurrer to the Complaint. The hearing date for the demurrer was set for Aug. 21, 2026. On May 22, 2026, defendant Corpus filed an Answer to the Complaint. On Aug. 3, 2026, Plaintiffs attempted to file their proposed FAC, but the Clerk's Office rejected the attempted filing of the FAC, on grounds that defendant Corpus had already filed an Answer. (See Aug. 10, 2026 Decl. of Jason Hauer, ¶¶ 3-5; Exhibits 2-3.) The deadline for Plaintiffs to file their Opposition to the demurrer was Aug. 10, 2026.

Application/ruling.

With respect to Defendant Daniel Perea, Plaintiffs' Aug. 3, 2026 attempted filing of their FAC was timely under Code Civ. Proc. § 472(a). The fact that defendant Corpus had already filed an Answer did not terminate Plaintiff's right to amend with respect to the claims asserted against the County of San Mateo and Fox. (*Barton v. Khan* (2007) 157 Cal.App.4th 1216, 1220-21.) Therefore, the Clerk's Office should have filed the FAC, which would have rendered this demurrer moot. Because Plaintiffs timely exercised their right to amend as against Perea, and because the Clerk's rejection of the FAC was based upon the erroneous conclusion that defendant Corpus' Answer terminated that right, the Court declines to determine the merits of Perea's demurrer to the original Complaint.
